



GOVERNOR
KATHY HOCHUL

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Governor Hochul Announces Major Progress Toward Advancing Equity in Cannabis

Minority-Led Investment Team Chosen to Manage \$200 Million Fund to Support Social Equity in Cannabis Industry

Entity Headed by NBA Hall of Famer Chris Webber, Noted Entrepreneur Lavetta Willis, Financial Leader Suzanne Shank, and Former City Comptroller William Thompson

Governor Also Announces Appointment of New York's Cannabis Advisory Board Which Will Disburse Community Grants, Support Development of New York's Cannabis Market

Governor Kathy Hochul today announced next steps toward advancing equity in New York's growing cannabis industry. Today's announcement includes the selection of Social Equity Impact Ventures, LLC, a premier minority-led investment team, to sponsor and manage the \$200 million New York Social Equity Cannabis Investment Fund. Impact Ventures is a joint venture between an entity led by NBA Hall of Famer and entrepreneur Chris Webber, who is currently an active partner in a fund for cannabis-related ventures, and entrepreneur Lavetta Willis, also a partner in the cannabis-related venture and who has extensive brand building experience; and a firm affiliated with Siebert Williams Shank, one of the nation's leading minority- and women-owned investment banking firms, that will be led by SWS CEO Suzanne Shank and SWS Chief Administrative Officer William Thompson, the former New York City Comptroller.

"Today, New York takes an important step forward in creating jobs and opportunity for those who, historically, have been disproportionately targeted for cannabis infractions," **Governor Hochul said.** "As we create a new industry in New York, I am proud to see real progress in addressing the economic needs of our future entrepreneurs."

Governor Hochul also announced the appointment of new members to New York's Cannabis Advisory Board, which will serve together with the Office of Cannabis Management to establish an equitable and inclusive legal cannabis industry in New York.

"It is incumbent upon us to create a socially responsible cannabis industry here in New York State that ensures jobs and opportunity for minorities who have long been subject to unfair enforcement when it comes to cannabis use," **said Lieutenant Governor Antonio Delgado.** "Today's announcement will help ensure New York creates a fair and inclusive cannabis industry with equitable enforcement measures that provides equal opportunity to people of color."

State Senate Majority Leader Andrea Stewart-Cousins said, "I have proudly and confidently appointed Ebro Darden, Alex Alvarez, and Nikki Kateman to the Cannabis Advisory Board. I thank them for stepping up to be part of this historic opportunity and committing to this position's responsibilities. Their diverse backgrounds and experience will help ensure that New York State has a fair and equitable adult-use marijuana market. I look forward to their work."

State Senator Liz Krueger said, "The establishment of the Social Equity Cannabis Investment Fund and appointment of the Cannabis Advisory Board are critical steps toward creating a legal cannabis market rooted in social equity and addressing the damage done by the drug war. I am gratified to

see so many prominent leaders joining these efforts and look forward to continuing to work Governor Hochul and the Office of Cannabis Management to ensure real opportunities for those impacted by past failed drug policies, and to reinvest in communities most impacted by those policies."

Assembly Speaker Carl Heastie said, "When we passed the MRTA and legalized the adult use of marijuana, it was critical that we do it in a way that did not leave behind communities that have historically been devastated by state and federal drug laws. The Cannabis Advisory Board is a key part is making that a reality going forward. I am proud to appoint The Arthur A. Duncan II, Chandra Redfern and Armando Rosado to the board, and look forward to seeing them use their expertise to create a grant process that will reinvest in our communities and in programs that will improve the lives of New Yorkers."

Assembly Majority Leader Crystal Peoples-Stokes said, "For too long, communities of color have been the target of discriminatory criminal justice policies and suffered serious consequences for the possession of small amounts of marijuana, while others were never arrested or charged. My colleagues and I were very deliberate in drafting the legislation to allow those most impacted to have an opportunity to participate in this new industry. Access to capital is an obstacle for those impacted to realize this dream. I am so pleased to have professionals like Webber and Siebert assisting the State in making these dreams a reality."

DASNY President Reuben McDaniel III said, "New York stands alone in addressing the key barriers of accessing capital and the market that have held back minority, women and social justice involved entrepreneurs in every other state in the nation. "I'm proud of DASNY's role in a program will help build generational wealth that has been out of reach for far too many of our citizens, and that will succeed in creating social equity when so many other states' programs have failed."

Social Equity Cannabis Investment Fund

The Social Equity Cannabis Investment Fund, which was authorized as part of the 2022-2023 Budget by Governor Hochul and the New York State Legislature, is a public-private limited partnership that will be formed to position social equity entrepreneurs to succeed in New York's newly created adult use cannabis industry. It will allow the state to invest in a private fund to finance the leasing and equipping of up to 150 conditional adult-use retail dispensaries in New York State to be operated by individuals who have been impacted by the inequitable enforcement of marijuana laws. It is the first of its kind in the nation.

The Fund will help those who have a Conditional Adult Use Retail Dispensary License (CAURD) meet the costs of establishing adult-use cannabis retail dispensaries, including the identification and leasing of suitable retail locations and design, construction, and fit-out of the spaces. It is supported

by up to \$50 million in licensing fees and revenue from the adult-use cannabis industry and up to \$150 million from the private sector that will be raised by the fund manager.

In May 2022, the Dormitory Authority for the State of New York (DASNY) issued a request for proposals seeking a fund manager to sponsor and manage the \$200 million fund.

NBA All-Star and Webber Wellness founder Chris Webber said, "I'm incredibly honored to work with New York's esteemed officials to right the wrongs for individuals who were unjustly victimized by outdated cannabis policies. New York's thoughtful and inclusive approach to establishing equity in the cannabis space and creating opportunities for those affected by the War on Drugs is truly unparalleled. Together, we look forward to starting the healing process within the community nationwide and it starts by giving aspiring entrepreneurs in this state the education, resources and training to thrive in the cannabis sector. Our hope is that New York's holistic approach can be replicated in other markets and help accelerate the growth of underrepresented businesses across the country."

Suzanne Shank, CEO of Siebert Williams Shank & Co said, "As the regulated, adult-use cannabis business sector grows, the right approach should include eliminating barriers for equitable participation in this multi-billion-dollar industry. The Cannabis Social Equity Investment Fund has been established as a key tool to help level the playing field during New York State's licensing and siting of cannabis retail dispensaries across the state. This regulatory design will help disadvantaged entrepreneurs to compete fairly."

The Fund is a key component of the Seeding Opportunity Initiative to create opportunities for individuals with business experience who have been convicted of cannabis-related offenses, or their family members. The Initiative is a step toward addressing barriers that have significantly impeded progress for these individuals in other states, particularly accessing the capital needed to source, lease, construct and equip suitable real estate for conditional adult use retail cannabis dispensary locations.

A second award for design and construction services to renovate existing spaces for adult-use retail cannabis dispensary facilities is expected to be announced in July.

New York Cannabis Advisory Board

As outlined in the Marijuana Regulation & Taxation Act, New York's Cannabis Law enacted in 2021, the Cannabis Advisory Board will assist in creating the social and economic equity plan and will support the Cannabis Control Board in the development of regulations for the broader program. The Board's primary purpose, however, is to oversee the disbursement of the New York State Community Grants Reinvestment Fund, a separate fund that will support communities

disproportionately impacted by cannabis prohibition. This locally focused programming will include job training and placement, reentry services for justice-involved New Yorkers, system navigation services, youth-serving programs, financial literacy services and much more. The Fund will also be utilized to support the State's equity goals on an ongoing basis.

Tremaine Wright, Chair of the Cannabis Control Board said, "I'm excited to welcome the new members to New York State's Cannabis Advisory Board. As Chair of the Cannabis Control Board, I'm looking forward to working hand-in-hand with these New Yorkers to make sure New York has the most diverse and most equitable cannabis industry in the nation. These Cannabis Advisory Board members have unique and valuable work and life experiences that will make sure all New Yorkers have a voice in how New York's cannabis marketplace is regulated, and how tax revenues are shared with community nonprofits."

Chris Alexander, Executive Director of the Office of Cannabis Management said, "Central to the advancement of legalization was a clear principle of what the State should do with the revenue generated by adult-use sales. I see the creation of the Fund as one of the most important pieces of the State's Cannabis Law and could not be more pleased to have this body in place to support our mission. I'm also glad to see the new members of this board represent the geographic and cultural diversity of New York, and I can't wait to get to work with them to make sure all New Yorkers benefit from cannabis legalization."

In addition to the new members of the Cannabis Advisory Board are non-voting representatives from various state agencies. Included in that list are reps from Environmental Conservation, Agriculture & Markets, Children & Family Services, Labor, Health, Housing & Community Renewal, Addiction Services & Supports, and Education.

Under the Cannabis Law, funds raised through taxes on cannabis products and from licensing fees are to be directed back to communities across New York:

- 40% of those funds will go to the New York State Community Grants Reinvestment Fund, which will be disbursed by the Cannabis Advisory Board.
- 40% will go directly to school districts in municipalities that did not opt-out of cannabis sales; and
- 20% will be targeted for drug treatment programs.

List of Members of New York's Cannabis Advisory Board

- Alejandro Alvarez, Chief Executive Officer/Co-Founder of Soulful Synergy

- Joe Belluck, Partner at Belluck & Fox, LLC
- Dr. Junella Chin, MD, Integrative Medical Cannabis Physician
- Allan Clear, MD, Director at Office of Drug User Health at New York State Department of Health
- Dr. Chinazo Cunningham, MD, Commissioner of the New York State Office of Addiction Services & Supports
- Ibrahim Jamil Darden, Ebro In the Morning
- Kathleen DeCataldo, Assistant Commissioner for the Office of Student Support Services at the New York State Department of Education
- TheArthur A. Duncan II, Esq., Counselor and Attorney at Law at the Law Office of TheArthur A. Duncan
- Alan Gandelman, President of New York Cannabis Growers & Processors Association
- Dareth Glance, Deputy Commissioner at the New York State Department of Environmental Conservation
- Ruth Hassell-Thompson, Special Advisor for Policy and Community Affairs at the New York State Division of Homes & Community Renewal
- Garry Johnson, Chair of the NAACP New York State Economic Development
- Nikki Kateman, Political & Communications Director at Local 338 RWDSU/UFCW
- Suzanne Miles-Gustave, Esq., Executive Deputy Commissioner at the New York State Office of Children & Family Services
- Russell Oliver, Director of the Division of Employment & Workforce Solutions at the New York State Department of Labor
- Sarah Ravenhall, Executive Director of the New York State Association of County Health Officials
- Chandra Redfern, Chief Executive Officer at the Buffalo Federation of Neighborhood Centers Inc.
- Armando Rosado, Private Investigator at AR Investigations, Inc.
- Peter Shafer, Owner at Nanticoke Gardens
- Scott Wyner, Esq., General Counsel at the New York State Department of Agriculture & Markets

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